

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
NANA BOAKYE

SUMMONS

Plaintiff,

-against-

Plaintiff resides at:
38 6th Avenue, Apt. 409
Brooklyn, New York

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER JOHNNY CARDENAS
TAX REGISTRY # 962292, POLICE OFFICER JASIM UDDIN
TAX REGISRY# 949750, POLICE OFFICER MURRY
AND POLICE OFFICERS JOHN AND JANE DOE OF
TRANSIT DISTRICTS 32 AND 34,

Defendants,

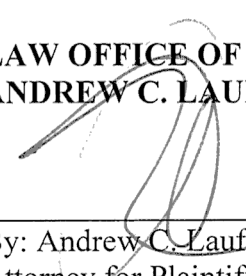
-----X
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
September 25, 2018

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER JOHNNY CARDENAS
TAX REGISTRY #962292, POLICE OFFICER JASIM UDDIN
TAX REGISTRY #949750, POLICE OFFICER MURRY
AND POLICE OFFICERS JOHN AND JANE DOE OF
TRANSIT DISTRICTS 32 AND 34
1243 Surf Avenue, Bklyn, New York 11224
And
960 Carroll Street, Bklyn, New York 11225

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
NANA BOAKYE,

VERIFIED COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER JOHNNY CARDENAS
TAX REGISTRY # 962292, POLICE OFFICER JASIM UDDIN
TAX REGISRY# 949750, POLICE OFFICER MURRY
AND POLICE OFFICERS JOHN AND JANE DOE OF
TRANSIT DISTRICTS 32 AND 34,

Defendants,

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the Defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendants, POLICE OFFICER JOHNNY CARDENAS TAX REGISTRY #962292, POLICE OFFICER JASIM UDDIN TAX REGISTRY #949750, POLICE OFFICER MURRY, AND POLICE OFFICERS JOHN AND

JANE DOE OF TRANSIT DISTRICTS 32 AND 34, were and still are employed with the New York City POLICE DEPARTMENT.

5. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiff.

6. That the CITY OF NEW YORK held an examination of Plaintiff pursuant to Municipal Law 50H on September 4, 2018.

7. That at all time herein mentioned, POLICE OFFICER JOHNNY CARDENAS TAX REGISTRY #962292, POLICE OFFICER JASIM UDDIN TAX REGISTRY #949750, POLICE OFFICER MURRY, AND POLICE OFFICERS JOHN AND JANE DOE OF TRANSIT DISTRICTS 32 AND 34, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

8. That at all times herein mentioned, POLICE OFFICER JOHNNY CARDENAS TAX REGISTRY #962292, POLICE OFFICER JASIM UDDIN TAX REGISTRY #949750, POLICE OFFICER MURRY, AND POLICE OFFICERS JOHN AND JANE DOE OF TRANSIT DISTRICTS 32 AND 34 were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

9. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

10. On or about June 2, 2018, at approximately 6:00 p.m., Plaintiff NANA BOAKYE was lawfully at the Bergen Street subway station, in the County of Kings, State of New York.

11. At said time and place, plaintiff duly paid his fare to use the subway. He proceeded through the turnstile and to the platform.

12. Soon thereafter he was directed by the defendants to come back to the gate and turnstile area, and exit.

13. Defendants' approached him and asked for his identification. They also inquired whether he paid his fare which he answered in the affirmative and where was he going.

14. Plaintiff responded that he was going to his mother's house.

15. Immediately thereafter, the officers pushed the plaintiff's back against the wall and ordered him to place his hands behind his back.

16. Plaintiff kept asking what's going on and why are you doing this.

17. One of the officers responded, "Shut the f&\$% up and put your hands behind your back..."

18. Plaintiff continued asking what was going on and why were they doing this.

19. Two of the officers grab his arms and forced him harder into the wall. Plaintiff was not resisting. He was also facing out towards the officers.

20. Plaintiff was then grabbed by all the officers and forced face first to the ground.

21. One of the officers then reached for his Taser and deployed it against the Plaintiff.

22. Plaintiff was Tased 3 times.

23. Plaintiff was then taken to the Transit District 32 and remained there for an hour before being taken to Kings County Hospital.

24. At the hospital, the Taser barbs were removed from plaintiff's body. His treating physician also ran an EKG test.

25. The EKG results demonstrated that his heart rate was not normal. Prior to this incident, plaintiff did not suffer from any type of heart condition. Nor does plaintiff have a family history of such condition.

26. After 5 to 6 hours, plaintiff was returned to Transit District 32 where he spent another 7 to 8 hours before he was taken to Transit District 34.

27. Plaintiff spent an additional 3 to 4 hours at Transit District 34 for no apparent reason

28. Thereafter, instead of being transported to Central Booking, plaintiff was simply released.

29. No reason was given as to why plaintiff was not charged with any crime.

30. The individual Defendant, POLICE OFFICER JOHNNY CARDENAS TAX REGISTRY #962292, POLICE OFFICER JASIM UDDIN TAX REGISTRY #949750, POLICE OFFICER MURRY, AND POLICE OFFICERS JOHN AND JANE DOE OF TRANSIT DISTRICTS 32 AND 34, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against them by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHT UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON FALSE ARREST
AND IMPRISONMENT

18. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

19. That on or about June 2, 2018, at approximately 6:00 p.m., THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, including but not limited to POLICE OFFICER JOHNNY CARDENAS TAX REGISTRY #962292, POLICE OFFICER JASIM UDDIN TAX REGISTRY #949750, POLICE OFFICER MURRY, AND POLICE OFFICERS JOHN AND JANE DOE OF TRANSIT DISTRICTS 32 AND 34, wrongfully and falsely arrested, imprisoned and detained Plaintiff without any right or justifiable grounds therefore.

20. That on or about June 2, 2018, at approximately 6:00 p.m., Defendant POLICE OFFICER JOHNNY CARDENAS TAX REGISTRY #962292, POLICE OFFICER JASIM UDDIN TAX REGISTRY #949750, POLICE OFFICER MURRY, AND POLICE OFFICERS JOHN AND JANE DOE OF TRANSIT DISTRICTS 32 AND 34, jointly and severally in their capacities as a police officer, wrongfully stopped, handcuffed, and seized the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

21. That on or about June 2, 2018, Defendants, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrested Plaintiff, restrained him and his liberty and then took him into custody to the 32 and 34 Transit District locations.

22. That the aforesaid arrest, detention and imprisonment continued at the 32 and 34 Transit District locations in Kings, New York and elsewhere.

23. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the Defendant police officer, without a warrant and without any reasonable cause or belief that Plaintiff was in fact guilty of any crime.

24. That the CITY, its agents, servants and employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

25. As a result of the aforesaid actions, including the arrest and imprisonment of Plaintiff without probable cause, Defendants deprived Plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment and the laws of the state of New York.

26. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments and the laws of the state of New York.

27. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments and the laws of the state of New York.

28. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

29. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly

injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

30. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and the laws of the state of New York.

SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY UNDER RESPONDEAT
SUPERIOR AND MONELL PURSUANT TO 42 U.S.C § 1983

31. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

32. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

33. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

34. Defendants arrested, incarcerated, prosecuted and assaulted Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

35. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York including but not limited to unlawful policies such as 'Stop and Frisk.'

36. On or about June 2, 2018, Defendants did stop, seize, search, assault and commit a

battery and grab the persons of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner.

37. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously abused without the Defendants' possessing probable cause to do so.

38. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from illegal search and seizure.
- d. Freedom from false arrest.
- e. Freedom from the use of excessive force during the arrest process.
- f. Freedom from unlawful imprisonment.

39. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

40. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when it's police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

41. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering to his detriment.

THIRD CAUSE OF ACTION FOR VIOLATION OF PLAINTIFFS' RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE USE OF
EXCESSIVE FORCE UPON PLAINTIFFS

42. Plaintiffs repeat and reallege each and every allegation contained herein as if fully set forth at length herein.

43. That on or about June 2, 2018, at approximately 6:30 p.m., Defendants, jointly and severally in their capacity as police officers, wrongfully entered, stopped, handcuffed and seized the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to enter, stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

44. As a result of the aforementioned actions, Defendants deprived Plaintiffs of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments and the laws of the state of New York.

45. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right against the use of excessive force against their persons secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments and the laws of the state of New York

46. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiffs' rights.

47. That by reason of the false arrest, imprisonment, detention, and the physical battering the of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both

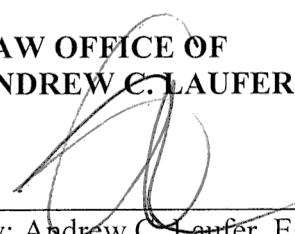
mind and body, and to sustain economic loss, and was otherwise damaged.

48. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State Law.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
September 25, 2018

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
NANA BOAKYE,

VERIFICATION

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER JOHNNY CARDENAS
TAX REGISTRY # 962292, POLICE OFFICER JASIM UDDIN
TAX REGISRY# 949750, POLICE OFFICER MURRY
AND POLICE OFFICERS JOHN AND JANE DOE OF
TRANSIT DISTRICTS 32 AND 34,

Defendants,

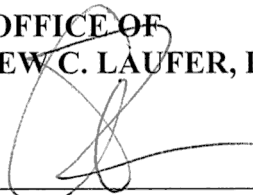
-----X

ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the plaintiff is that the plaintiff does not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
September 25, 2018

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**

A handwritten signature in black ink, appearing to read 'A. Laufer', is written over a horizontal line.

By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index:

Year:

NANA BOAKYE

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER JOHNNY CARDENAS
TAX REGISTRY #962292, POLICE OFFICER JASIM UDDIN
TAX REGISTRY 949750, POLICE OFFICER MURRY
AND POLICE OFFICERS JOHN AND JANE DOE OF
TRANSIT DISTRICT 32 AND 34,

Defendants,

SUMMONS AND COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer